

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

CURTISS-WRIGHT ELECTRO
MECHANICAL CORPORATION d/b/a
Curtiss-Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' RESPONSE TO PLAINTIFF'S
MOTION TO COMPEL**

Defendants Curtiss-Wright Electro-Mechanical Corp. d/b/a Curtiss-Wright Steam and Air Solutions ("Curtiss-Wright"), Stephanie Lanier, and Shane Sablotsky (collectively, "Defendants") by and through their undersigned counsel, submit this Response to Plaintiff's Motion to Compel (ECF No. 100) and her Motion to Compel Confirmation of Depositions (ECF No. 99).

Both Motions were premature when filed and must be denied.

On September 12, 2025, Plaintiff filed a Motion to Compel Defendants to respond to discovery requests, which, by her own admission, were not due until September 13.¹ Defendants responded to Plaintiff's discovery requests on September 12, 2025, the day before they were due. (**Exhibit A**, Defs' Discovery Responses). Upon serving their Responses, Defendants' counsel explained to Plaintiff that the responses were timely and asked her to withdraw this Motion.

¹ September 13 was a Saturday and so, technically, Defendants' responses were not due until Monday, September 15, 2025.

(**Exhibit B**, Correspondence with Ms. Nelson.) Counsel advised Plaintiff that if Defendants had to respond to her Motion, that they would seek the costs of having to do so from the Court. Plaintiff responded by saying, “I will not withdraw anything.” (*Id.*)

Because Defendants timely and fully responded to her first set of discovery, Plaintiff’s Motion to Compel should be denied. Further, because Plaintiff filed her Motion prior to the deadline to respond to her first set of discovery, and she refused to withdraw the Motion after Defendants timely served discovery, Defendants respectfully request that the Court order Plaintiff to pay their fees in having to respond to the instant Motion. To the extent Plaintiff seeks to compel Defendants to respond to her Second Requests for Production of documents, which she served on September 3, 2025, and which are not due until October 3, 2025, her Motion must be denied as premature.

Plaintiff also filed a “Motion to Compel Confirmation of Depositions” on September 12. (ECF No. 99.) In that Motion, she points to Defendants’ alleged failure to confirm the depositions and Defendants’ filing of a Motion to Dismiss her Fourth Amended Complaint as evidence that Defendants do not intend to produce witnesses for these depositions. This is not accurate. On September 1, Plaintiff emailed Defendants’ counsel to inquire about the current employment status of 9 individuals. Defendants requested that information from Curtiss Wright and provided Plaintiff with the requested information on September 12. In the meantime, on September 2, 2025, Plaintiff filed a “Notice of Deposition” with the Court (ECF No. 89), in which she indicated a desire to depose five witnesses plus a corporate representative “at a mutually agreed upon location, date, and time.” (ECF No. 89.) Thereafter, Ms. Nelson advised counsel for Defendants that she would like to do the depositions all at once on October 8 but was open to other days that week. The next day, Defendants’ counsel proposed to Plaintiff that we postpone depositions until such time as the

Court rules on Defendants' pending Motion to Dismiss because the claims in the case are not yet set. Plaintiff responded that she insisted on proceeding with the depositions to be finished by the Court's November 5 discovery deadline. Defendants' counsel advised Plaintiff that we were checking on witness availability the weeks of October 8 and October 15 and would be in touch. With respect to Plaintiff's request for a corporate representative deposition, Defendants' counsel explained to Plaintiff that she needed to provide a list of topics that she intended to cover so that Curtiss Wright could identify the most appropriate person(s) for the deposition. Plaintiff has not done so to date.

Defendants are committed to cooperating in good faith with Plaintiff's discovery efforts and scheduling the depositions at a *mutually* agreeable time and place. Defendants have not failed to confirm any depositions but have been working with Curtiss Wright to identify their availability and schedule depositions at a mutually agreed upon time and place, as Plaintiff originally requested. Defendants are working to confirm whether that date is October 8 or some later date(s) in October. Plaintiff cannot unilaterally select the deposition date and refuse to cooperate with Defendants in scheduling depositions at a mutually agreeable date and time. As such, Plaintiff's Motion to Compel Confirmation of Depositions should be denied or dismissed as moot.

The only deposition Defendants are not actively working to schedule is the corporate representative deposition because Plaintiff has yet to identify topics for the deposition as required by Fed. R. Civ. P. 30(b)(6).

Defendants request a status conference with the Court to discuss Plaintiff's outstanding discovery motions and any other outstanding discovery issues and to discuss options for preventing future unnecessary discovery motions.

Respectfully submitted this 17th day of September, 2025.

s/ T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

JACKSON LEWIS P.C.

15 South Main Street, Suite 700

Greenville, SC 29601

Phone: 864-232-7000

ATTORNEYS FOR DEFENDANTS

**IN THE UNITED STATES DISTRICT COURT
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DEBRA NELSON,

Plaintiff,

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MECHANICAL CORPORATION d/b/a
Curtiss-Wright Steam and Air Solutions,
STEPHANIE LANIER, and SHANE
SABLOTSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

CERTIFICATE OF SERVICE

The undersigned certifies that on September 17, 2025, a copy of the foregoing **DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION TO COMPEL**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

[REDACTED]

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

Exhibit A

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' RESPONSES TO PLAINTIFF'S
FIRST SET OF INTERROGATORIES**

TO: DEBRA NELSON, Plaintiff, *Pro Se*

Pursuant to the Federal Rules of Civil Procedure Rules 26 and 33, Defendants Curtiss Wright Electro Mechanical Corp, Stephanie Lanier, and Shane Sablitsky (collectively "Defendants"), by and through their undersigned counsel, serve these responses to the Interrogatories to Defendants. These responses reflect Defendants' present knowledge and the results of their investigation to date. Defendants reserve the right to amend or supplement these responses as may be necessary or appropriate in the future.

INTERROGATORIES

INTERROGATORY NO. 1: Identify all persons who participated in, authorized, or had knowledge of the monitoring, interception, or surveillance of Plaintiffs emails. For each person, state their full name, job title, and the extent of their involvement or knowledge.

ANSWER: Defendants are unaware of anyone who participated in, authorized, or had knowledge of the monitoring, interception or surveillance of Plaintiff's emails. Defendants maintain that such monitoring, interception, or surveillance did not occur.

INTERROGATORY NO. 2: Describe in detail all measures taken to interfere with or disable Plaintiffs printing capabilities, including the dates of such actions, the individuals who carried them out, and the reasons for doing so.

ANSWER: Defendants are unaware of any measures taken to interfere with or disable Plaintiff's printing capabilities, and, thus, have no information responsive to Interrogatory No. 2.

INTERROGATORY NO. 3: Identify all persons present and describe in detail the substance of all communications, discussions, and statements made during the meeting on November 15, 2023, concerning Plaintiff Debra Nelson. Your answer should include the date, time, and location of the meeting, the identity of each participant, what each participant said, and any decisions or conclusions reached.

ANSWER: Defendants are not aware of a November 15, 2023 meeting concerning Plaintiff. Defendants will supplement this response if Plaintiff can provide additional information about the meeting to which she is referring.

Respectfully submitted this 12th day of September 2025,

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

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Greenville, SC 29601

Phone: 864-232-7000

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DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions,
STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants.

Case No. 2:25-cv-00405-DCN-MHC

CERTIFICATE OF SERVICE

The undersigned certifies that on September 12, 2025, a copy of the foregoing **DEFENDANTS' RESPONSES TO PLAINTIFF'S FIRST INTERROGATORIES**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

[REDACTED]

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
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DEBRA NELSON,

Plaintiff,

v.

Curtiss Wright Electro Mechanical Corp.
d/b/a Curtiss-Wright Steam and Air
Solutions, STEPHANIE LANIER, and
SHANE SABLITSKY,

Defendants

C.A. No. 2:25-cv-00405-DCN-MHC

**DEFENDANTS' RESPONSES TO
PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS**

TO: DEBRA NELSON, Plaintiff, *Pro Se*

Pursuant to the Federal Rules of Civil Procedure Rules 26 and 34, Defendants Curtiss Wright Electro Mechanical Corporation, Stephanie Lanier, and Shane Sablitsky (collectively "Defendants"), by and through their undersigned counsel, serve these responses to the Requests for Production of Documents to Defendants. These responses reflect Defendants' present knowledge and the results of their investigation to date. Defendants reserve the right to amend or supplement these responses as may be necessary or appropriate in the future.

REQUESTS FOR PRODUCTION

RFP 1: Produce a complete and unredacted copy of Plaintiff Debra Nelson's personnel file from the date of her hire to the present, including but not limited to her employment application, offer letters, contracts, performance evaluations, disciplinary records, commendations, compensation history, and separation documents.

ANSWER: Curtiss-Wright did not maintain a traditional "personnel file" on Plaintiff but personnel records responsive to this Request are produced at DEFS0001-DEFS0036, DEFS0087-DEFS0132.

RFP 2: Produce all payroll records for Plaintiff Debra Nelson for the pay period covering

September 25, 2023, through September 29, 2023, including but not limited to pay stubs, time sheets, and records of any adjustments made to her pay or recorded hours.

ANSWER: Plaintiff's pay records covering September 25, 2023, through September 29, 2023 and related email correspondence are produced at DEFS0037-DEFS0058.

RFP 3: Produce all documents, logs, and communications related to the access, monitoring, or interception of Plaintiffs email account.

ANSWER: Defendants are unaware of any access, monitoring, or interception of Plaintiff's email account. Defendants maintain that such access, monitoring, or surveillance did not occur, and thus, have no documents, logs, or communications responsive to Request No. 3.

RFP 4: Produce all documents, including IT work orders, emails, or internal memos, related to any modification or restriction of Plaintiffs access to or use of office equipment, including printers.

ANSWER: All documents including IT work orders, emails, or internal memos, related to any modification of Plaintiff's access to or use of office equipment, including printers are produced at DEFS0059-DEFS0081.

RFP 5 (Directed to Stephanie Lanier): Produce any and all documents, notes, emails, or other written records referring or relating to the alleged verbal counseling of Plaintiff on or about July 11, 2023.

ANSWER: Defendant Lanier is unaware of verbal counselling that occurred on July 11, 2023. To the extent that Plaintiff is referring to verbal counselling that was scheduled to occur on July 14, 2023 but did not take place until July 17, 2023; relevant documents are attached at DEFS0082-DEFS0086.

RFP 6 (Directed to Shane Sablotsky): Produce true and correct copies of any and all written or recorded statements you made on or about November 14, 2023, and November 15, 2023, concerning Plaintiff Debra Nelson, including but not limited to statements made to Human Resources or other management personnel.

ANSWER: Defendant Sablotsky is unaware of any written or recorded statement he made on or about November 14, 2023, or November 15, 2023 concerning Plaintiff Debra Nelson, and, thus, he has no documents responsive to RFP 6.

Respectfully submitted this 12th day of September 2025,

s/T. Chase Samples

T. Chase Samples (Fed. I.D. No. 10824)

Joseph V. Valenza (Fed. I.D. No. 14416)

Email: Chase.Samples@jacksonlewis.com

Email: Joseph.Valenza@jacksonlewis.com

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Defendants.

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CERTIFICATE OF SERVICE

The undersigned certifies that on September 12, 2025, a copy of the foregoing **DEFENDANTS' RESPONSES TO PLAINTIFF'S FIRST REQUEST FOR PRODUCTION OF DOCUMENTS**, has been served upon the following via email and United States Mail, postage prepaid and addressed to:

Debra Nelson

Pro Se Plaintiff

s/ T. Chase Samples

T. Chase Samples

Exhibit B

Bishop, Melissa (Greenville)

From: Debra Nelson [REDACTED] >
Sent: Friday, September 12, 2025 6:33 PM
To: Samples, T. Chase (Greenville)
Cc: Valenza, Joseph V. (Greenville)
Subject: Re: Nelson v. Curtiss Wright et al. CA No. 2:25-cv-00406-DCN-MHC

You responded to an email on Friday at 4:32pm and ask me to withdraw? You have to be kidding me.

On Fri, Sep 12, 2025, 6:22 PM Debra Nelson [REDACTED] > wrote:
I will not withdraw anything.

On Fri, Sep 12, 2025, 6:21 PM Debra Nelson [REDACTED] wrote:
They are due on September 13th which is Saturday. You've had a whole month to respond. Enough with the delay tactics

On Fri, Sep 12, 2025, 4:32 PM Samples, T. Chase (Greenville) <Chase.Samples@jacksonlewis.com> wrote:

Ms. Nelson:

We just received notice of your filing of a motion to compel Defendants' discovery responses, which were not due until September 15, 2025. You noted in your motion that the responses were not due until September 13. However, under Federal Rule of Civil Procedure 6(a)(1), if a deadline to respond falls on a Saturday, Sunday, or legal holiday, then the deadline is extended to the next Monday (or day that is not a legal holiday). We were planning to respond to your discovery by the September 15 deadline, but we have gone ahead and served our responses a day early.

In light of that, your motion to compel was premature, and we respectfully ask that you contact the Court and withdraw your motion. If we are forced to file a response to the Motion, then we will seek appropriate relief from the Court, including requesting costs of having to respond to an unnecessary motion.

Thank you for your prompt attention to this matter.



T. Chase Samples

Attorney at Law

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